

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

TROY CLARKE,

Plaintiff,

-against-

SUMMONSTHE CITY OF NEW YORK, DETECTIVE JOSE
LIZARDO, Shield No. 2113, UNDERCOVER POLICE
OFFICER, Shield No. 366, SERGEANT BRIAN QUERY,
Shield No. 5001, and POLICE OFFICERS JOHN DOES
NUMBERS ONE THROUGH TEN,

Index No.:

The Basis of Venue is:
Location of Incident

Defendants.

Plaintiff designates Bronx
County as the place of trial.

----- X

To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
October 20, 2018

Yours, etc.

/s/JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
DETECTIVE JOSE LIZARDO, Shield No. 2113, Narcotics Borough Bronx, 1 Police
Plaza, Room 1100, New York, NY 10007
UNDERCOVER POLICE OFFICER, Shield No. 366, Narcotics Borough Bronx, 1
Police Plaza, Room 1100, New York, NY 10007
SERGEANT BRIAN QUERY, Shield No. 5001, Narcotics Borough Bronx, 1 Police
Plaza, Room 1100, New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

TROY CLARKE,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE JOSE
LIZARDO, Shield No. 2113, UNDERCOVER POLICE
OFFICER, Shield No. 366, SERGEANT BRIAN QUERY,
Shield No. 5001, and POLICE OFFICERS JOHN DOES
NUMBERS ONE THROUGH TEN,

Defendants.

----- X

INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff TROY CLARKE, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On July 22, 2017, at approximately 3:00 p.m., plaintiff Troy Clarke, while lawfully in the vicinity of 726 East 227th Street, Bronx, New York, was subject to an unlawful assault, battery, and use of excessive force by the defendant New York City police officers when they tackled and slammed plaintiff to the ground, causing plaintiff to suffer a serious injuries, including but not limited to a dislocated left elbow. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully assaulted, battered, and used excessive force against plaintiff in violation of the Fourth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff TROY CLARKE is a resident of the state of New York.

3. DETECTIVE JOSE LIZARDO, Shield No. 2113, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. DETECTIVE JOSE LIZARDO, Shield No. 2113, is and was at all times relevant herein, assigned to Narcotics Borough Bronx.

5. DETECTIVE JOSE LIZARDO, Shield No. 2113, is being sued in his individual and official capacity.

6. UNDERCOVER POLICE OFFICER, Shield No. 366 is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. UNDERCOVER POLICE OFFICER, Shield No. 366, is and was at all times relevant herein, assigned to Narcotics Borough Bronx.

8. UNDERCOVER POLICE OFFICER, Shield No. 366, is being sued in his individual and official capacity.

9. SERGEANT BRIAN QUERY, Shield No. 5001, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. SERGEANT BRIAN QUERY, Shield No. 5001, is and was at all times relevant herein, assigned to Narcotics Borough Bronx.

11. SERGEANT BRIAN QUERY, Shield No. 5001, is being sued in his individual and official capacity.

12. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. Police Officers John Does #1-10 are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

16. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

17. In accordance with New York State law and General Municipal Law Section 50, plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on July 30, 2018.

18. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

19. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

20. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

21. On July 22, 2017, at approximately 3:00 p.m., plaintiff was lawfully present in the vicinity of 726 East 227th Street, Bronx, New York.

22. At no point in time did plaintiff commit any crime, nor would any reasonable police officer believe plaintiff committed any crime.

23. No reasonable police officer would have believed it was necessary to use physical force against plaintiff at any time.

24. Suddenly, without provocation or legal justification, the defendant police officers approached plaintiff and tackled him to the ground and fell on top of plaintiff.

25. As a result of the defendant police officers tackling plaintiff to the ground, plaintiff sustained serious physical injuries, including but not limited to, a dislocated left elbow.

26. The defendant police officers then unlawfully handcuffed plaintiff.

27. At no point in time did plaintiff resist arrest in any way.

28. The handcuffs placed on plaintiff were unreasonably tight on plaintiff's wrists, causing plaintiff to suffer pain and discomfort.

29. Plaintiff immediately requested medical attention for the pain to his left elbow, however the defendant police officers failed to provide plaintiff medical timely medical attention.

30. Instead, the defendant police officers left plaintiff handcuffed in the back of a police van and drove around for approximately 4 hours.

31. Thereafter, the defendant police officers transported plaintiff to the 48th precinct.

32. While at the 48th precinct, plaintiff once again requested medical attention for the injuries that were inflicted by the defendant police officers.

33. Finally, on July 22, 2017, at approximately 7:30 p.m., EMS arrived at the 48th and provided medical treatment to plaintiff.

34. Thereafter, plaintiff was transported via EMS to St. Barnabus Hospital to receive further medical treatment for the injuries inflicted by the defendant police officers.

35. Upon arrival at St. Barnabus Hospital, plaintiff was given an X-ray of his left elbow, which indicated that in fact plaintiff had sustained a dislocated left elbow.

36. Plaintiff was then sedated in order for the doctors to manually reduce plaintiff's elbow back into place.

37. The doctors then placed plaintiff's left arm in a sling in order to keep his left elbow immobile.

38. On July 23, 2017, at approximately 5:00 a.m., plaintiff was discharged from the hospital and transported to Bronx Central Booking.

39. On July 23, 2017, at approximately 3:30 p.m., plaintiff was arraigned and released on his own recognizance.

40. Thereafter, plaintiff had to return to St. Barnabus Hospital on several occasions to receive further medical treatment for the injury to his left elbow inflicted by the defendant police officers.

41. Plaintiff incurred approximately \$10,000 in medical bills as a result of the injuries inflicted by the defendant police officers.

42. As a result of the incident, plaintiff was unable to work for approximately 1 year.

43. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable assault, battery, and use of excessive force against plaintiff.

44. The unlawful assault, battery, and use of excessive force against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

45. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.

46. The use of excessive force by defendants by, amongst other things, by tackling and slamming plaintiff to the ground constituted objectively unreasonable physical seizures of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

47. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SECOND CAUSE OF ACTION

Negligent Infliction of Emotional Distress

48. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

49. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Troy Clarke. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

50. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

51. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

52. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

53. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

54. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

Negligence

55. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.

56. Defendants owed a duty of care to plaintiff.

57. To the extent defendants claim that the injuries to plaintiff's persons by the defendant police officers was unintentionally caused and that the force used by the defendants against him was unintentional, then the defendants breached that duty of care by accidentally and negligently handcuffing plaintiff in a excessively tight manner and dragging plaintiff across the ground while he was handcuffed.

58. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

59. All of the foregoing occurred without any fault or provocation by plaintiff.

60. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

61. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

62. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Assault

63. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 62 with the same force and effect as if more fully set forth at length herein.

64. Defendants, their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, that such acts caused apprehension of such contact in the plaintiff.

65. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

66. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

67. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

68. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Battery

69. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 68 with the same force and effect as if more fully set forth at length herein.

70. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

71. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

72. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

73. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

74. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

75. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 74 with the same force and effect as if more fully set forth at length herein.

76. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

77. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Failure to Intervene

78. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 77 with the same force and effect as if more fully set forth at length herein.

79. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

80. Defendants failed to intervene to prevent the unlawful conduct described herein.

81. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

82. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

83. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

84. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

85. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

86. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Troy Clarke demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
October 20, 2018

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
DETECTIVE JOSE LIZARDO, Shield No. 2113, Narcotics Borough Bronx, 1 Police Plaza, Room 1100, New York, NY 10007
UNDERCOVER POLICE OFFICER, Shield No. 366, Narcotics Borough Bronx, 1 Police Plaza, Room 1100, New York, NY 10007
SERGEANT BRIAN QUERY, Shield No. 5001, Narcotics Borough Bronx, 1 Police Plaza, Room 1100, New York, NY 10007

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
October 20, 2018

/s/
STUART E. JACOBS